

Module 5

Industrial Designs: Eligibility Criteria. Acts and Laws to Govern Industrial Designs. Design Rights. Enforcement of Design Rights. Non-Protectable Industrial Designs India. Protection Term. Procedure for Registration of Industrial Designs. Prior Art Search. Application for Registration. Duration of the Registration of a Design. Importance of Design Registration. Cancellation of the Registered Design. Application Forms. Classification of Industrial Designs. Designs Registration Trend in India. International Treaties. Famous Case Law: Apple Inc. vs. Samsung Electronics Co.

Geographical Indications: Acts, Laws and Rules Pertaining to GI. Ownership of GI. Rights Granted to the Holders. Registered GI in India. Identification of Registered GI. Classes of GI. Non-Registerable GI. Protection of GI. Collective or Certification Marks. Enforcement of GI Rights. Procedure for GI Registration Documents Required for GI Registration. GI Ecosystem in India.

Case Studies on Patents. Case study of Curcuma (Turmeric) Patent, Case study of Neem Patent, Case study of Basmati patent. **IP Organizations In India. Schemes and Programmes**

Chapter -1

Industrial Designs

1. What is a Design?

A design includes the **shape, pattern, ornament, or arrangement of lines or colors** applied to a product. It can be one-dimensional, two-dimensional, or three-dimensional, or a mix of these.

2. How is a Design Created?

Designs can be made using **manual, mechanical, or chemical methods** (or a combination of these). The focus is on how the final product **looks** and whether it appeals to the **eye**.

3. What is Not a Design?

A design does not include:

- The way something is built (construction methods).
- Mechanical parts or devices.

Example:

Construction Methods:

- The internal structure of a bridge or the way steel beams are arranged to support it.
- The method used to assemble a smartphone's internal components.

Mechanical Parts or Devices:

- The functioning of a car's engine or the arrangement of its pistons.
- The internal mechanism of a clock that powers its movement.
- The working parts of a washing machine, such as the motor or gearbox.

4. Purpose of Registering a Design

- To protect the **creator's original idea**.
- To encourage others to explore and innovate in creating appealing designs.

Example:

- **Design:** The curved shape of a Coca-Cola bottle is registered as a design because it is visually unique.
- **Not a Design:** The mechanism of a car engine is not a design since it is functional and not judged by appearance.

ELIGIBILITY CRITERIA

- **Originality and Novelty:**
The design must be new and not shared with the public before through publications, use, or other methods.
 - **Example:** If a company creates a unique pattern for a handbag that has never been seen before, it qualifies as novel.
- **Significant Difference:**
The design must be clearly different from designs already registered or available in public.
 - **Example:** A new phone case design with a distinctive texture or shape that sets it apart from existing ones in the market can be considered for protection.

Category	Examples
Consumer Goods	Coca-Cola bottle shape, Toblerone chocolate packaging
Electronic Devices	Apple iPhone design, AirPods body shape
Furniture	IKEA chair designs, Ornamental luxury bed frames
Jewelry & Accessories	Intricate bracelet patterns, Luxury watch designs (e.g., Rolex)
Vehicles	Tesla Model S body, Ferrari sports car shape
Fashion	Louis Vuitton monogram patterns, Adidas Yeezy shoe design
Household Items	Dyson vacuum cleaner exterior, Uniquely shaped teapots or appliances
Toys	LEGO brick design, Action figures or doll appearances
Industrial Products	Electric drill casing, Wind turbine or solar panel external designs
Automobile Accessories	Alloy wheel designs, Car headlight and tail lamp designs

ACTS AND LAWS TO GOVERN INDUSTRIAL DESIGNS

- In India, industrial designs are governed by **The Designs Act, 2000** and **Design Rules, 2001**, with amendments in **2008, 2013, 2014, and 2019**. Industrial design protects the unique shape, appearance, or pattern of a product that makes it appealing.
- Key Characteristics of a Valid Industrial Design:
 1. **Novelty and Originality:** The design must be new and not copied. *Example:* A chair with a unique spiral pattern.
 2. **Applicable to Functional Articles:** The design should enhance the appearance of something useful.
 3. **Visible on Finished Articles:** The design must be visible when the product is used. *Example:* Patterns on a mug or smartphone casing.
 4. **No Prior Publication:** The design should not have been made public before registration. *Example:* A car company registers a new headlight design before showcasing it.

Famous Industrial Designs

- **Coca-Cola Bottle:**
 - The iconic contoured glass bottle, introduced in 1915, remains a classic design in beverages.
- **iPhone:**
 - Apple's sleek, rectangular body with rounded corners and user-friendly features like on/off buttons set a benchmark in mobile phone design.

Industrial Design: Focuses on how a product *looks* (aesthetic appeal).

Not Industrial Design: Deals with how a product *works* (functionality, processes).

Products That Fall Under Industrial Design	Products That Do Not Fall Under Industrial Design
Decorative patterns on textiles	Functional elements like the internal mechanism of a clock
Unique bottle shapes (e.g., Coca-Cola bottle)	Processes or methods (e.g., manufacturing processes)
Car body designs (e.g., Tesla Model S exterior)	Literary or artistic works (e.g., books, paintings)
Furniture designs (e.g., a uniquely shaped chair)	Software code or algorithms
Packaging designs (e.g., unique perfume bottles)	Technical inventions (e.g., new engine designs)
Smartphone designs (e.g., iPhone body design)	Trademarks or logos (covered under trademark law)
Jewelry designs (e.g., a unique necklace pattern)	Chemical compositions (e.g., formula for a drug)
Home appliances with unique aesthetics (e.g., a stylish mixer grinder)	Natural objects (e.g., unaltered stones, leaves)
Toys with innovative shapes (e.g., LEGO figurines)	Utility models or patents for functionality
Cutlery with creative handles (e.g., flower-shaped spoon handles)	Industrial equipment without decorative elements

DESIGN RIGHTS

- **Design registration gives the owner exclusive rights to prevent others from copying, making, selling, or dealing with the registered design without permission.** This type of registration is especially helpful for businesses where the shape or appearance of their product is important and unique, as it ensures they **have sole control over using that design.**
- **Example:** If a company creates a unique-shaped bottle for its beverage, registering the design means no other company can produce or sell a bottle with the same shape without permission.

ENFORCEMENT OF DESIGN RIGHTS

- **Right to Take Action:** If someone owns a registered design, they have the right to take legal action if others are copying or using that design without permission.
- **Filing a Case:** The design owner can file a lawsuit in a court (at least at the District Court level) to stop the unauthorized use and claim damages.
- **Registration Check:** The court will first verify that the design is officially registered under the **Designs Act, 2000**.
- **No Registration, No Action:** If the design is not registered, the owner cannot take legal action against anyone copying it.
- **Penalties for Infringement:** If someone is found guilty of copying a registered design, the court can order them to pay damages, which can be up to **₹50,000** for each design copied

Non-Protectable Industrial Designs in India

- **Designs Against Public Morals:** Any design that is **offensive or against public morals** cannot be registered.
Example: A design with inappropriate or offensive imagery.
- **National Symbols:** Designs that **include flags, emblems, or signs of any country** are **not protectable**.
Example: A design featuring the Indian national flag cannot be registered.
- **Integrated Circuits:** Designs related to the **structure of integrated circuits** are **not eligible for protection**.
Example: A circuit board design used in electronic devices.
- **Process-Oriented Designs:** Designs that **describe how an article is made** are **not protectable**.
Example: A step-by-step illustration showing how to create a piece of furniture.
- **Document Designs:** **Designs of books, calendars, certificates, forms, greeting cards, maps, postcards, and stamps** cannot be registered.
Example: The layout of a greeting card or a postcard design.

- **Artistic Works:** Artistic works defined under the **Copyright Act, 1957**, are not **eligible for industrial design registration**. This includes:
 - **Paintings and Sculptures:** Original artwork or sculptures.
 - **Drawings:** Diagrams, maps, charts, or plans.
 - **Photographs:** Any form of photography.
 - **Architectural Work:** Designs of buildings or structures.
 - **Other Artistic Craftsmanship:** Works like intricate hand-carved items.
- **Trademarks:** **Designs that are trademarked cannot be registered as industrial designs.**
Example: The logo of a company like Apple or Nike.

Protection Term for Designs

- The shape or design of a product can make it more attractive and add value. To prevent others from using these designs without permission, it is important to have protection for them.
- In India, **registered designs are protected for 10 years**, and this protection can be **extended for an additional 5 years** by **renewing the registration**.

PROCEDURE FOR REGISTRATION OF INDUSTRIAL DESIGNS

Prior Art Search:

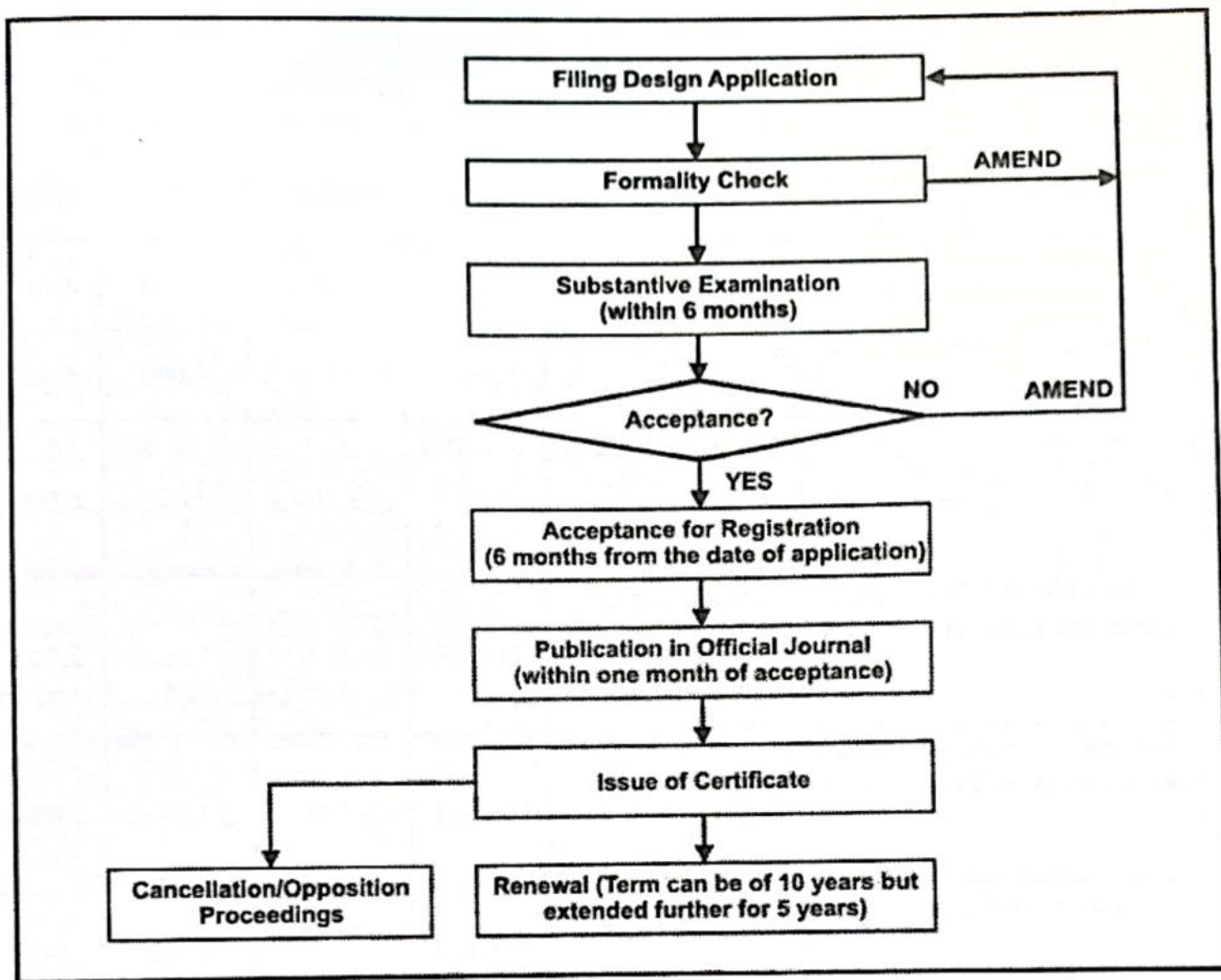
- Before applying, **check if a similar design has already been registered to avoid conflicts.**
- **Tools to use:** Use search engines like **Design Search Utility (CGPDTM)** and **Global Design Database (WIPO).**
- **Example:** If you want to register a new chair design, check online databases to make sure there isn't already a similar chair design registered.

Application for Registration:

- **Who can apply:** **Individuals, small entities, institutions, organizations, and industries.** Applications can also be made through a **patent agent or legal practitioner.**
- If the **applicant is not based in India**, they **must hire an agent residing in India.**

Application Review Process:

- An **examiner** at the **Design Office reviews the application** to make sure it meets the minimum requirements for registration.
- If there are **any issues or questions**, the **examiner** will **send them to the applicant**, who must **respond within 6 months**.
- Once **any objections are resolved**, the design **application is accepted** for **registration**.



Duration of Design Registration

1. **Initial Validity:** A design registration is **valid for 10 years from the registration date.**
2. **Extension:** The **registration can be extended for 5 more years.**
3. **Application for Extension:** To extend, **file Form-3** with the **required fees before the initial 10 years end.**
4. **Priority Date Clause:** **If you claim a priority date, the 10-year period starts from that date instead.** **Example:** If you file a design in India on March 1, 2021, based on a foreign priority date of January 1, 2021, the validity will count from January 1, 2021.

IMPORTANCE OF DESIGN REGISTRATION

- **Exclusive Rights:** Protects your unique design from being copied.
Example: If you create a unique chair design, no one else can legally sell it without your permission.
- **Prevents Piracy:** Stops others from imitating your registered design.
Example: If someone tries to replicate your custom jewelry design, you can take legal action.
- **Boosts Business:** Increases product sales and builds trust in the market.
Example: A registered smartphone design attracts more buyers because it's seen as original and reliable.

Cancellation of a Registered Design

1. Duplicate Registration

- The same design has already been registered before.
- **Example:** A chair design registered under one name is later registered under another name.

2. Previously Published

- The design was published in India or any other country before its registration.
- **Example:** A pattern used on fabric that appeared in an international magazine before being registered.

3. Lack of Novelty or Originality

- The design is not new or unique.
- **Example:** A registered phone case design is an exact copy of an existing design.

4. Not a Valid Design Under the Law

- The design does not qualify as a "Design" under **Clause (d) of Section 2**.
- **Example:** A mechanical part essential for functionality rather than aesthetics cannot be considered a valid design.

APPLICATION FORMS

S. No	Name of the Form	Form No.	Fee (₹)		
			Natural Person	Small Entity	Large Entity
1.	Application for registration of Design.	Form-1	1,000	2,000	4,000
2.	Application for the Restoration of Design.	Form-4	1,000	2,000	4,000
3.	Application for renewal of Design.	Form-3	2,000	4,000	8,000
4.	Petition for cancellation for registration of a Design.	Form-8	1,500	3,000	6,000
5.	Notice of intended exhibition or publication of unregistered Design.	Form-9	500	1,000	2,000
6.	Application for entry of name of proprietor or part proprietor in the Register.	Form-11	500	1,000	2,000
7.	Request for correction of clerical error.	Form-14	500	1,000	2,000
8.	Request for certified copy.	Form-15	500	1,000	2,000
9.	Application for rectification of Register.	Form-17	500	1,000	2,000
10.	Notice of opposition.	Form-19	100	200	400

CLASSIFICATION OF INDUSTRIAL DESIGNS

Purpose:

- Industrial designs are classified to organize and register them systematically.
- This classification helps in registering and searching for designs.

Locarno Agreement:

- Established in 1968.
- Provides the framework for this classification system.
- Classes must be mentioned in official documents of signatory countries.

Structure:

- Contains **32 classes** and **237 subclasses**.
- Includes lists of goods categorized as Industrial Designs.

Languages:

- Available in **English** and **French** for global accessibility.

Examples of Classes:

1. **Class 1:** Designs for foodstuff for humans and animals, and dietetic foods (excluding packaging).
2. **Class 9:** Packaging designs like bottles, flasks, pots, and pressurized containers.
3. **Class 32:** Designs for graphic symbols, logos, surface patterns, and ornamentation.

Class	Category
Class 1	Foodstuffs for humans, animals, and dietetic foods (excluding packaging).
Class 2	Articles of clothing and haberdashery.
Class 3	Travel goods, cases, parasols, and personal belongings not elsewhere specified.
Class 4	Brushware.
Class 5	Textile piece goods, artificial and natural sheet material.
Class 6	Furnishing.
Class 7	Household goods not elsewhere specified.
Class 8	Tools and hardware.
Class 9	Packaging and containers for transporting or handling goods.
Class 10	Clocks and watches, and other measuring instruments, checking, and signaling instruments.
Class 11	Articles of adornment.
Class 12	Means of transport or hoisting.

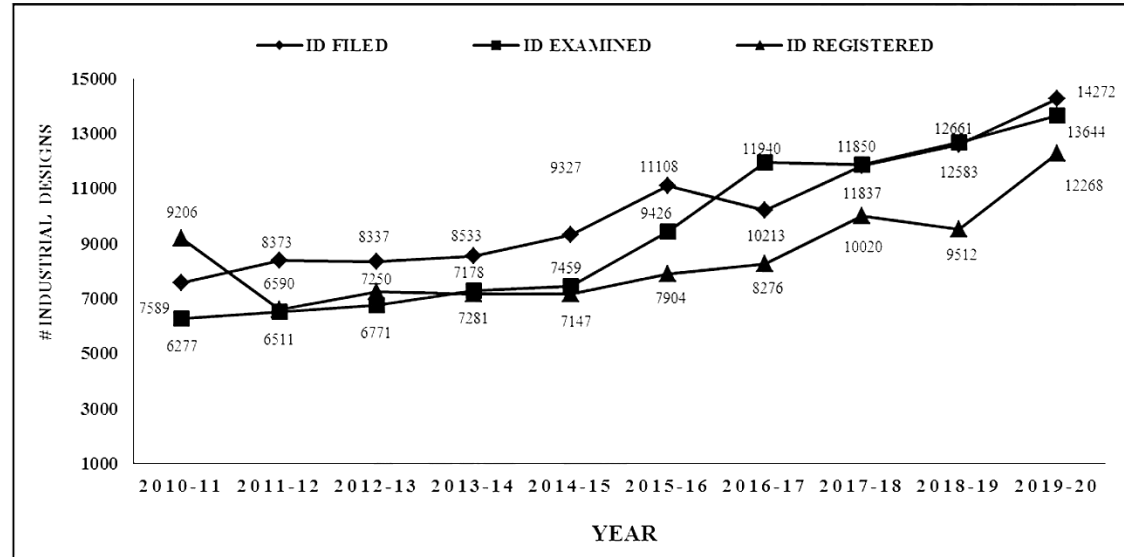
Class 13	Equipment for production, distribution, or transformation of electricity.
Class 14	Recording, communication, or information retrieval equipment.
Class 15	Machines, not elsewhere specified.
Class 16	Photographic, cinematographic, and optical apparatus.
Class 17	Musical instruments.
Class 18	Printing and office machinery.
Class 19	Stationery and office equipment, artists' and teaching materials.
Class 20	Sales and advertising equipment, signs.

Class 21	Games, toys, tents, and sports goods.
Class 22	Arms, pyrotechnic articles, articles for hunting, fishing, and pest killing.
Class 23	Fluid distribution equipment, sanitary, heating, ventilation, and air-conditioning equipment, solid fuel.
Class 24	Medical and laboratory equipment.
Class 25	Building units and construction elements.
Class 26	Lighting apparatus.

Class 27	Tobacco and smokers' supplies.
Class 28	Pharmaceutical and cosmetic products, toilet articles, and apparatus.
Class 29	Devices and equipment against fire hazards, for accident prevention, and rescue.
Class 30	Articles for care and handling of animals.
Class 31	Machines and appliances for preparing food or drink, not elsewhere specified.
Class 32	Graphic symbols and logos, surface patterns, ornamentation.

DESIGNS REGISTRATION TRENDS IN INDIA

- The figure shows statistics for Industrial Designs (filed, examined, and registered) from 2010–2020.
- Key observations over this period:
 - **Filed designs** increased by 88%.
 - **Examined designs** increased by 117%.
 - **Registered designs** increased by 33%.
- The trends in all three categories follow a similar pattern, peaking in 2019–20:
 - Filed: 12,268
 - Examined: 13,644
 - Registered: 14,272



FAMOUS CASE LAW: APPLE INC. VS. SAMSUNG ELECTRONICS CO.

- In 2011, Apple sued Samsung in a U.S. court, claiming Samsung copied its **designs and features** like the **app grid** and **tap-to-zoom**.
- Apple showed image comparisons of the iPhone 3GS and Samsung Galaxy S to highlight similarities.
- It was later revealed that Apple **altered the images** to make the designs look more similar.
- Samsung accused Apple of providing **false evidence** and countersued Apple in multiple countries (South Korea, Japan, Germany, and the U.S.).
- The legal battle went on for **7 years**.
- In 2018, both companies settled, and Samsung paid **\$539 million** to Apple for copying its patents.

Differences between patents, copyrights, Trademarks, Industrial Design, and Geographical Indications

Aspect	Patent	Copyright	Trademark	Industrial Design	Geographical Indication (GI)
Definition	Protects inventions or innovations, including processes or products.	Protects original literary, artistic, and creative works.	Protects symbols, names, or logos that identify a brand or product.	Protects the aesthetic or ornamental design of a product.	Identifies products linked to a specific location or origin.
Purpose	To encourage innovation and technological progress.	To protect the creator's expression or creativity.	To distinguish a brand or business.	To safeguard unique product appearance.	To promote region-specific products.

Scope	Functional and technical aspects of an invention.	Literary, musical, artistic, or digital works.	Logos, brand names, slogans, or symbols.	Shape, texture, or pattern of a product.	Specific quality, reputation, or origin.
Protection Period	20 years (from filing date, usually).	Creator's life + 50–70 years, depending on laws.	Renewable every 10 years (indefinitely).	Typically 10–15 years, renewable.	Varies; generally renewable indefinitely.
Examples	Smartphone technology, drug formula (e.g., COVID-19 vaccine).	Novels (e.g., <i>Harry Potter</i>), songs, movies.	Nike swoosh, Apple logo.	Coca-Cola bottle design, car body shapes.	Darjeeling tea, Champagne, Kolhapuri chappals.

Chapter 2

Geographical Indications

- A **Geographical Indication (GI)** is a label used for products that come from a specific place and have unique qualities or a reputation tied to that location. The product and its place of origin are closely connected.

ACTS, LAWS AND RULES PERTAINING TO GI

- In India, GI was **introduced in 2003** and is governed under the **Geographical Indications of Goods (Registration & Protection) Act, 1999** and the **Geographical Indications of Goods (Registration & Protection) Rules, 2002**.

1. **Champagne** (France): Only sparkling wine produced in the Champagne region of France can be labeled as *Champagne*.
2. **Darjeeling Tea** (India): Only tea grown in the Darjeeling region can be called *Darjeeling Tea*.
3. **Parmigiano-Reggiano** (Italy): A type of cheese produced in specific regions of Italy, including Parma, Reggio Emilia, and Modena.
4. **Swiss Cheese** (Switzerland): Specific varieties of cheese like *Emmental* can only be produced in Switzerland.
5. **Scotch Whisky** (Scotland): Whisky produced in Scotland following specific rules and regulations can be labeled as *Scotch*.
6. **Kolhapuri Chappals** (India): Traditional handmade leather sandals from the Kolhapur region in India.
7. **Basmati Rice** (India/Pakistan): Only rice grown in specific areas of India and Pakistan can be called *Basmati*.

OWNERSHIP OF GI

The ownership of a registered GI can belong to:

- Producers (as a group, association, or cooperative society).
- Associations of producers.
- In some cases, the government.

Example:

The GI for **Darjeeling Tea** is owned by the **Tea Board of India**, representing the tea producers from that region.

https://ipindia.gov.in/writereaddata/Portal/Images/pdf/State_wise_Registered_GI_of_India_26_07_2024.pdf

RIGHTS GRANTED TO THE HOLDERS

- **Right to Grant License:** The **owner of a Geographical Indication (GI) can give permission to others to use their product, sell it, or make an agreement for payment.** This **permission must be in writing and registered** to be valid.
Example: A manufacturer of *Darjeeling tea* can license another company to produce and sell it under the *Darjeeling* label.
- **Right to Sue:** The **owner can take legal action against anyone** who **uses the GI product without permission.**
Example: If someone sells a tea labeled as *Darjeeling* without proper authorization, the registered owner can sue them.
- **Right to Exploit:** The **owner** can **allow others to use the GI product** exclusively **under certain terms.**
Example: The owner of *Champagne* can give permission to specific producers in the Champagne region to use the label.
- **Right to Get Reliefs:** The **registered owner** and **those allowed to use the GI** can seek **legal help if their GI rights are violated.**
Example: If a company falsely uses the *Champagne* label on non-origin products, the registered owners can seek relief through legal action.

REGISTERED GI IN INDIA

- In India, **GI (Geographical Indication) products** are registered for items related to **handicrafts, agriculture, food, alcoholic drinks**, and more.
- The **first GI tag** was given in **2004** to **Darjeeling Tea**, and the most recent ones (as of May 2020) are **Kashmir Saffron** and **Manipur Black Rice (Chakhao)**.
- In total, **370 GI products** were registered by May 2020. **58%** of these GI products are **handicrafts**, and **30%** are from **agriculture**.
- Other GI products include **food items, manufactured goods**, and **natural products**.
- In the **handicraft** category, **Tamil Nadu** has the most GI products (21), followed by **Uttar Pradesh (20)** and **Karnataka (19)**.

Table 10.1 : List of popular GIs registered in India

GI	Type	State
Darjeeling Tea	Agriculture	West Bengal
Mysore Silk	Handicraft	Karnataka
Kashmir Pashmina	Handicraft	Jammu & Kashmir
Banaras Brocades and Sarees	Handicraft	Uttar Pradesh
Naga Mircha	Agriculture	Nagaland
Tirupathi Laddu	Foodstuff	Andhra Pradesh
Phulkari	Handicraft	Punjab, Haryana, Rajasthan
Basmati	Agriculture	India

IDENTIFICATION OF REGISTERED GI

- **GI Tag:** A registered product gets a special tag that proves it was made using set standards and in a specific location.
- **Non-registered Products:** These cannot use the GI tag.
- **Significance:** GI tags show where a product comes from and its cultural or historical importance (e.g., Darjeeling Tea, Mysore Silk, Tirupathi Laddu).
- **Issuing Authority:** In India, the Geographical Indication Registry, part of the Ministry of Commerce and Industry, handles GI tags.
- **Registry Location:** The main office is in Chennai, India.
- **Global Production:** GI products can be produced anywhere in the world as long as they follow the GI Registry's standards.
- **Location Requirement:** Products must be made in the specific location mentioned in the GI records to be labeled with that GI name.

Classes of GI

- GI (Geographical Indication) certified products are divided into **34 different categories** (classes).
- **Class 1** includes chemicals used in various industries, such as those for science, agriculture, and manufacturing. It also covers unprocessed plastics, manures, fire extinguishers, and food preservatives.
- **Class 33** covers alcoholic drinks (excluding beer).
- **Class 34** includes tobacco products, smoking items, and matches.
- For more information, you can visit the **CGPDTM Office's official website**.

Example:

- **Class 33:** *Champagne* (a GI certified product from the Champagne region of France).
- **Class 34:** *Cigarettes* or *matches* are examples of tobacco and smoking items.

<https://search.ipindia.gov.in/IPOJournal/Journal/ViewJournal>

- | | |
|-----------------|--|
| Class 1. | Chemical used in industry, science, photography, agriculture, horticulture and forestry; unprocessed artificial resins, unprocessed plastics; manures; fire extinguishing compositions; tempering and soldering preparations; chemical substances for preserving foodstuffs; tanning substances; adhesive used in industry |
| Class 2. | Paints, varnishes, lacquers; preservatives against rust and against deterioration of wood; colorants; mordents; raw natural resins; metals in foil and powder form for painters; decorators; printers and artists |
| Class 3. | Bleaching preparations and other substances for laundry use; cleaning; polishing; scouring and abrasive preparations; soaps; perfumery, essential oils, cosmetics, hair lotions, dentifrices |
| Class 4. | Industrial oils and greases; lubricants; dust absorbing, wetting and binding compositions; fuels(including motor spirit) and illuminants; candles, wicks |
| Class 5. | Pharmaceutical, veterinary and sanitary preparations; dietetic substances adapted for medical use, food for babies; plasters, materials for dressings; materials for stopping teeth, dental wax; disinfectants; preparation for destroying vermin; fungicides, herbicides |
| Class 6. | Common metals and their alloys; metal building materials; transportable buildings of metal; materials of metal for railway tracks; non-electric cables and wires of common metal; ironmongery, small items of metal hardware; pipes and tubes of metal; safes; goods of common metal not included in other classes; ores |
| Class 7. | Machines and machine tools; motors and engines (except for land vehicles); machine coupling and transmission components (except for land vehicles); agricultural implements other than hand-operated; incubators for eggs |

<https://ipindia.gov.in/writereaddata/images/pdf/classification-of-goods.pdf>

- Class 8.** Hand tools and implements (hand-operated); cutlery; side arms; razors
- Class 9.** Scientific, nautical, surveying, electric, photographic, cinematographic, optical, weighing, measuring, signalling, checking (supervision), life saving and teaching apparatus and instruments; apparatus for recording, transmission or reproduction of sound or images; magnetic data carriers, recording discs; automatic vending machines and mechanisms for coin-operated apparatus; cash registers, calculating machines, data processing equipment and computers; fire extinguishing apparatus
- Class 10.** Surgical, medical, dental and veterinary apparatus and instruments, artificial limbs, eyes and teeth; orthopaedic articles; suture materials
- Class 11.** Apparatus for lighting, heating, steam generating, cooking, refrigerating, drying ventilating, water supply and sanitary purposes
- Class 12.** Vehicles; apparatus for locomotion by land, air or water
- Class 13.** Firearms; ammunition and projectiles; explosives; fire works

- Class 14.** Precious metals and their alloys and goods in precious metals or coated therewith, not included in other classes; jewellery, precious stones; horological and other chronometric instruments
- Class 15.** Musical instruments
- Class 16.** Paper, cardboard and goods made from these materials, not included in other classes; printed matter; bookbinding material; photographs; stationery; adhesives for stationery or household purposes; artists' materials; paint brushes; typewriters and office requisites (except furniture); instructional and teaching material (except apparatus); plastic materials for packaging (not included in other classes); playing cards; printers' type; printing blocks
- Class 17.** Rubber, gutta percha, gum, asbestos, mica and goods made from these materials and not included in other classes; plastics in extruded form for use in manufacture; packing, stopping and insulating materials; flexible pipes, not of metal
- Class 18.** Leather and imitations of leather, and goods made of these materials and not included in other classes; animal skins, hides, trunks and travelling bags; umbrellas, parasols and walking sticks; whips, harness and saddlery
- Class 19.** Building materials, (non-metallic), non-metallic rigid pipes for building; asphalt, pitch and bitumen; non-metallic transportable buildings; monuments, not of metal.
- Class 20.** Furniture, mirrors, picture frames; goods(not included in other classes) of wood, cork, reed, cane, wicker, horn, bone, ivory, whalebone, shell, amber, mother- of-pearl, meerschaum and substitutes for all these materials, or of plastics
- Class 21.** Household or kitchen utensils and containers(not of precious metal or coated therewith); combs and sponges; brushes(except paints brushes); brush making materials; articles for cleaning purposes; steelwool; unworked or semi-worked glass (except glass used in building); glassware, porcelain and earthenware not included in other classes

- Class 22.** Ropes, string, nets, tents, awnings, tarpaulins, sails, sacks and bags (not included in other classes) padding and stuffing materials(except of rubber or plastics); raw fibrous textile materials
- Class 23.** Yarns and threads, for textile use
- Class 24.** Textiles and textile goods, not included in other classes; bed and table covers.
- Class 25.** Clothing, footwear, headgear
- Class 26.** Lace and embroidery, ribbons and braid; buttons, hooks and eyes, pins and needles; artificial flowers
- Class 27.** Carpets, rugs, mats and matting, linoleum and other materials for covering existing floors; wall hangings(non-textile)
- Class 28.** Games and playthings, gymnastic and sporting articles not included in other classes; decorations for Christmas trees
- Class 29.** Meat, fish, poultry and game; meat extracts; preserved, dried and cooked fruits and vegetables; jellies, jams, fruit sauces; eggs, milk and milk products; edible oils and fats

- Class 30.** Coffee, tea, cocoa, sugar, rice, tapioca, sago, artificial coffee; flour and preparations made from cereals, bread, pastry and confectionery, ices; honey, treacle; yeast, baking powder; salt, mustard; vinegar, sauces, (condiments); spices; ice
- Class 31.** Agricultural, horticultural and forestry products and grains not included in other classes; live animals; fresh fruits and vegetables; seeds, natural plants and flowers; foodstuffs for animals, malt
- Class 32.** Beers, mineral and aerated waters, and other non-alcoholic drinks; fruit drinks and fruit juices; syrups and other preparations for making beverages
- Class 33.** Alcoholic beverages(except beers)
- Class 34.** Tobacco, smokers' articles, matches

NON-REGISTERABLE GI

For a **Geographical Indication (GI)** to be registered, it must meet the conditions set out in **Section 2(1)(e)** of the GI Act, 1999. Additionally, it must not violate **Section 9**, which lists conditions for exclusion:

- **Deceptive or confusing use:** The GI should not mislead or confuse consumers.
- **Illegal use:** The GI must not go against any law.
- **Obscene or offensive content:** The GI must not contain anything scandalous or inappropriate.
- **Hurtful to society:** The GI should not include anything that might offend social sentiments.
- **Religious sensitivity:** The GI should not offend the religious beliefs of any group in India.
- **Generic or outdated names:** The GI should not be a common name or an indication that is no longer protected in its origin country or has become obsolete there.

PROTECTION OF GI

- **Enforcement of GI Rights:** The **legal protection** of a **Geographical Indication (GI)** is **upheld by the courts** in the **country where the product is sold or produced**. If someone **uses a GI without permission**, they can be **taken to court** for **violating those rights**.
- **Advantages of GI Registration:**
 - **Identification of Genuine Products:** GI registration helps to distinguish authentic products from fake or pirated ones.
 - **Increased Commercial Value:** **Products with GI status can be sold at a higher price** because they are **recognized as having a unique origin and quality**.
 - **Legal Strength:** If a GI is misused, **having it registered** makes it **easier to prove ownership in court** and **defend against infringement**.

- **Methods of Protecting GI:**

- **Sui Generis System:** This is a **special system that some countries use to protect GIs**, like India. It is **unique to the country** and **adapted to its own laws and circumstances**.
- **Certification or Collective Mark Systems:** This method involves using a **certification mark or a collective trademark** to show that **a product comes from a specific place** and **meets set standards**.

- **Background of GI Protection:**

- The **TRIPS Agreement (1995)** gave countries **the option to follow the standard rules of protection or create their own system (sui generis)**.
- Different countries chose different systems based on their laws and resources. This means that **not all countries protect GIs the same way**.

COLLECTIVE OR CERTIFICATION MARKS

- **Certification Marks:** These marks show that **a product meets certain quality standards, regardless of where it comes from.** The standards can include **specific materials or manufacturing methods.**
- **Purpose of Certification Marks:** They **help consumers identify products that meet certain quality standards** and **distinguish them from those that do not.**
- **Collective Marks:** These are **owned by an association** and **show that a product or service meets the standards set by the group.**

Example: The "*Organic*" label used by certified farms or food producers that follow organic farming standards.

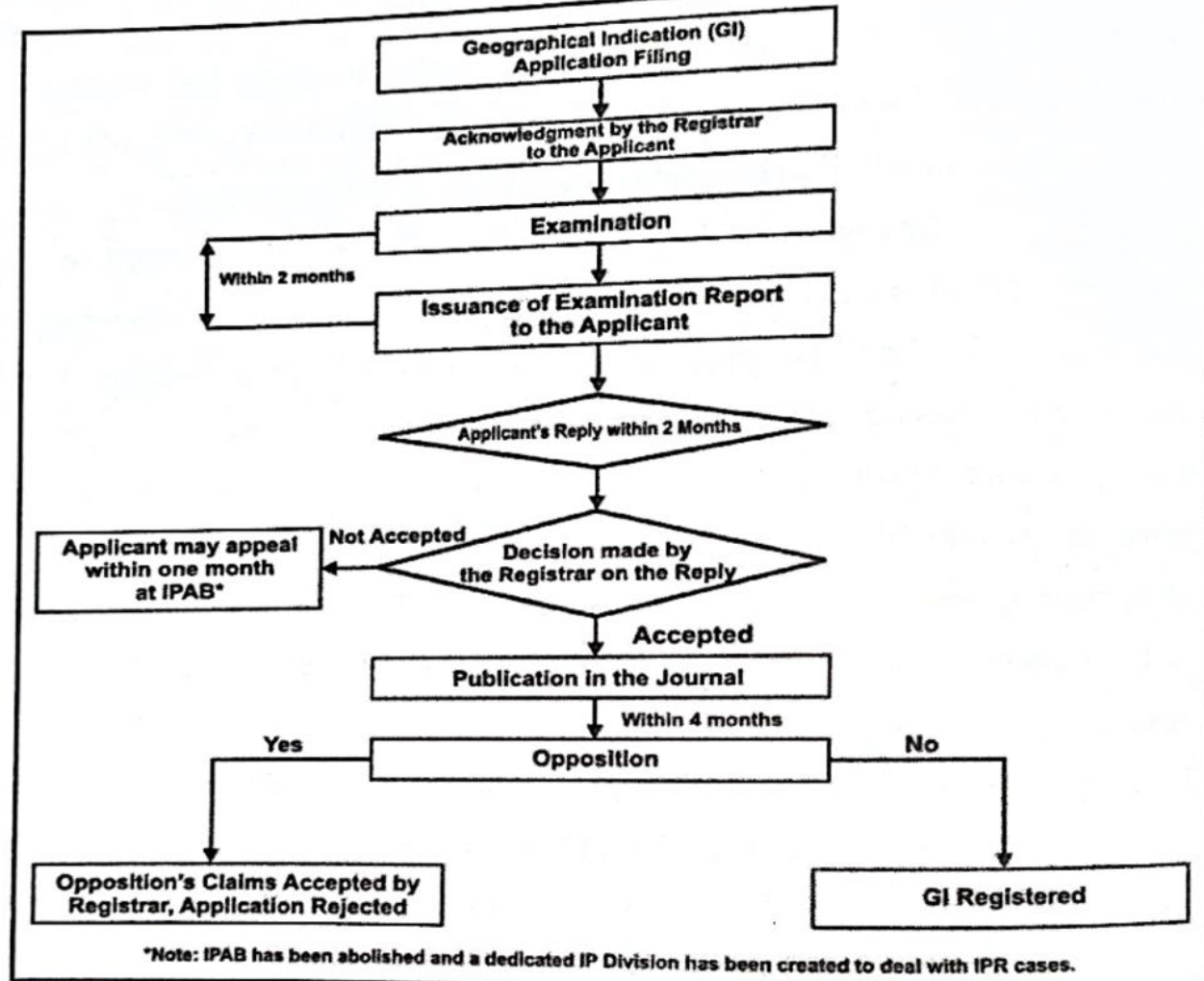
- **Purpose of Collective Marks:** They **indicate that a product or service comes from a member of a specific group or association,** which has **agreed to maintain shared quality standards.**

Example: The "*Fair Trade*" mark is used by organizations and companies that agree to follow fair trade practices.

Enforcement of GI Rights

- GI rights are enforced through legal action in courts.
- **Sanctions** for violations may include:
 - **Civil:** Orders to stop unlawful acts (injunctions) or compensation for damages.
 - **Criminal:** Punishments like fines or imprisonment.
 - **Administrative:** Penalties or corrective actions imposed by government authorities.

Procedure for GI registration



Steps for Registering a Geographical Indication (GI)

1) Prior Search:

- Before applying, check if the GI is already registered using WIPO search engines or the CGPD TM website (for India).

2) Filing the Application:

- Applications can be filed by individuals, organizations, or authorities established under Indian law.
- Submit the prescribed form, fee, producer interest details, and three certified maps of the GI region.
- The application must explain how the GI's standards will be maintained.

3) Examination Process:

- The **Examiner** checks the application for issues like deficiencies or similarities.
- Any issues are communicated to the applicant, who must respond within **1 month**.

4) Registrar Review:

- After resolving issues, the Registrar reviews the examination report.
- If further clarifications are needed, the applicant has **2 months** to respond; failure to do so leads to rejection.

5) Publication in GI Journal:

- Once approved, the application is published in the **Geographical Indication Journal** to invite objections.
- Objections must be filed within **4 months**.

6) Registration:

- If no objections are raised, the GI is registered, using the filing date as the registration date.
- The GI is initially registered for **10 years**, with the option to renew it by paying a renewal fee.

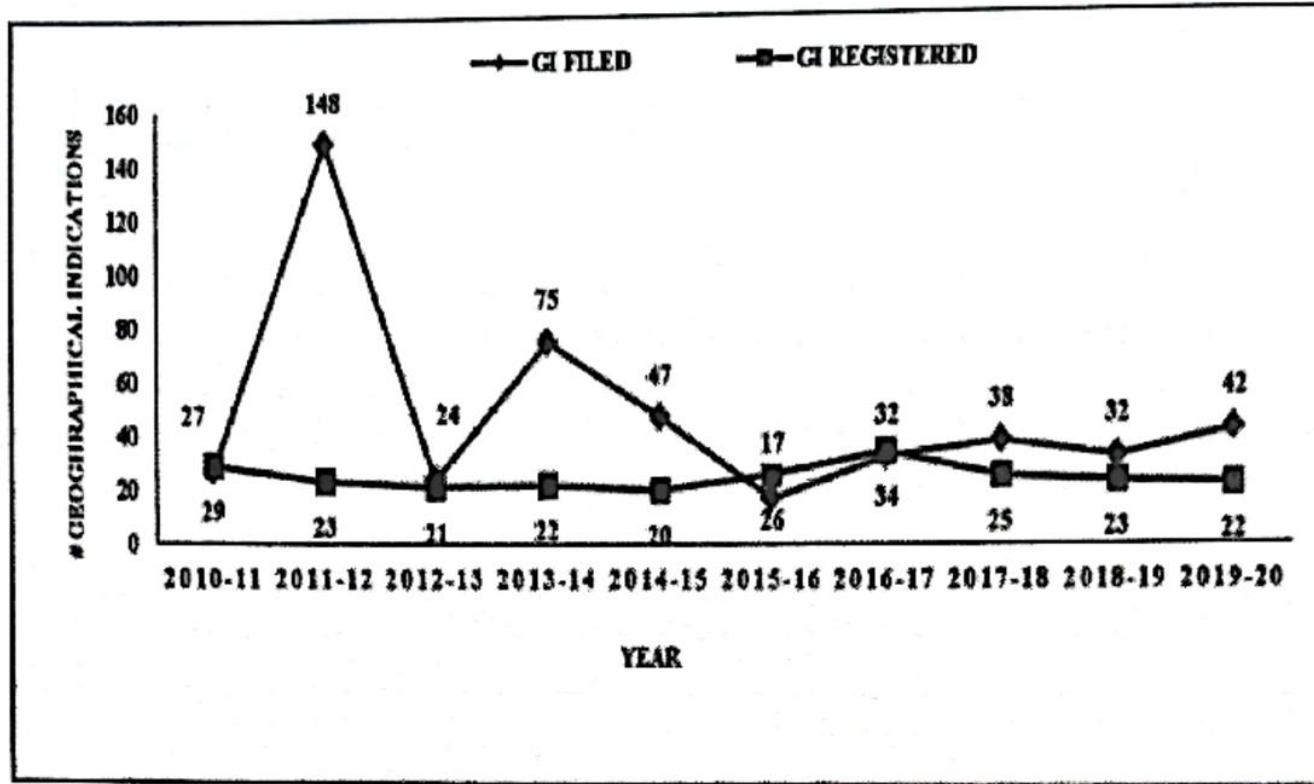
DOCUMENTS REQUIRED FOR GI REGISTRATION

1. **Applicant Details:** Name, address, and related information.
2. **Application Form:** Submit Form GI-1A.
3. **Goods Details:** Statement about the goods to be protected under GI.
4. **Goods Category:** Specify the class of goods.
5. **Affidavit:** Proof of genuinely representing the producers' interests.
6. **GI Characteristics:** Description of unique features.
7. **Human Skill:** Mention any special skills involved (if applicable).

GI-1	Application for the registration of a Geographical Indication for goods included in one class.	5000
	Application for the registration of a Geographical Indication for goods included in one class from a Convention country.	5000
	A single application for the registration of a Geographical Indication for goods in different classes.	5,000 for each class
	A single application for the registration of a Geographical Indication for goods in different classes from a Convention country.	5,000 for each class
GI-2	Notice of opposition to the registration of a Geographical Indication or an opposition or an authorised user.	1,000 for each class
	Form of counter-statement.	1,000
	Application for extension of time for filing notice of opposition.	300
GI-3	Application for the registration of an authorised user of a registered Geographical Indication.	500
	Request for issuance of a registration certificate as an authorised user.	100
	For renewal of an authorised user.	1000
GI-4	Renewal of the registration of a Geographical Indication at the expiration of the last registration.	3,000
	Application for restoration of a Geographical Indication or an authorised user removed from the Register.	1000 plus applicable renewal fee
	Application for renewal within six months from the expiration of last registration of Geographical Indication.	3,500
GI-8	Application for registration of a Geographical Indications agent.	1000
GI-10	Application for cancellation of an entry in the Register or to strike out goods.	300

The important forms to file GI in India under various classes are mentioned below table

GI ECOSYSTEM IN INDIA



Source: Annual Reports, Office of CGPDTM, Mumbai (2011-20)

(<https://dipp.gov.in/sites/default/files/annualReport-English2020-21.pdf>)

- India is rich in geography and traditions, offering great potential for Geographical Indication (GI) products, which can boost regional and societal economic development.
- However, as of June 2021, only 370 GIs have been registered, far below India's potential.
- Between 2010 and 2020:
 - The highest GI filings (148) were in 2011-12, and the lowest (17) in 2015-16.
 - GI registrations remained steady, mostly in the twenties each year, with the highest (34) in 2016-17.

Case study of Curcuma (Turmeric) Patent

1. Background:

Turmeric (*Curcuma longa*) is a plant widely used in India for medicinal, culinary, and religious purposes for centuries.

2. Patent Issue:

In 1995, researchers from the USA were granted a patent for using turmeric in wound healing.

3. Controversy:

The patent claimed novelty for the use of turmeric, but it was already well-known in Indian traditional medicine (Ayurveda) and culture. This made the patent invalid under the principle of "prior art."

4. Challenge:

The Indian Council of Scientific and Industrial Research (CSIR) contested the patent at the US Patent Office, providing evidence of prior knowledge in ancient texts and practices.

5. Outcome:

The patent was revoked in 1997, as it did not meet the criteria of novelty.

6. Significance:

This case highlighted the need to protect traditional knowledge from misuse and led to the creation of the **Traditional Knowledge Digital Library (TKDL)** in India to document such knowledge.

Case study of Neem Patent

1. Introduction:

- Neem (*Azadirachta indica*) is a tree native to India, valued for its medicinal, agricultural, and traditional uses.

2. Patent Issue:

- In 1994, a European company (W.R. Grace) and U.S. Department of Agriculture were granted a patent for a neem-based pesticide in Europe.

3. Controversy:

- Indian farmers and activists argued that neem's pesticidal properties were traditional knowledge, not an invention.
- The patent was seen as **biopiracy**, exploiting India's indigenous knowledge without acknowledgment or benefit-sharing.

4. Legal Challenge:

- Activists, NGOs, and the Indian government filed a case in the European Patent Office (EPO).
- The argument: The patent lacked originality because neem's use as a pesticide was well-documented in ancient texts.

5. Outcome:

- After multiple hearings, the EPO revoked the patent in 2000, recognizing the traditional knowledge of neem.

6. Significance:

- This case highlighted the importance of protecting traditional knowledge and questioned the misuse of patent laws.
- It promoted awareness about biopiracy and led to better safeguards for indigenous knowledge globally.

Case study of Basmati patent.

1. Introduction:

- Basmati rice is a premium variety of aromatic rice traditionally grown in India and Pakistan.
- It holds a significant place in the culture and economy of these regions.

2. Issue:

- In 1997, an American company, RiceTec, was granted a patent by the US Patent and Trademark Office (USPTO) for a rice variety that they claimed was similar to Basmati.
- RiceTec attempted to label their product as "Basmati rice," which raised concerns in India and Pakistan.

3. Controversy:

- India argued that Basmati is a traditional product with a unique geographic origin, and granting a patent violated the intellectual property rights of the region.
- The patent was seen as "biopiracy," where traditional knowledge and products were misappropriated for commercial purposes.

4. Steps Taken by India:

- The Indian government, along with farmers and NGOs, challenged the patent.
- India provided evidence that Basmati rice was a product of the Indo-Gangetic plains and had unique qualities due to its geographic origin.

5. Outcome:

- In 2001, RiceTec had to withdraw most of its patent claims.
- The term "Basmati" was recognized as a Geographical Indication (GI), protecting it from misuse.

6. Significance:

- The case highlighted the importance of protecting traditional knowledge and heritage through intellectual property laws.
- It stressed the need for countries to register unique products under Geographical Indications to prevent exploitation.

7. Lessons Learned:

- Countries must be proactive in documenting and protecting traditional products.
- International laws like the TRIPS agreement can be leveraged to safeguard intellectual property rights.

IP Organisations in India

IP Organizations in India

In India, there are several organizations that play a key role in managing and regulating intellectual property (IP) rights. These organizations are responsible for granting patents, trademarks, copyrights, and other forms of intellectual property protection. Here are some of the important IP organizations in India:

- **Controller General of Patents, Designs & Trade Marks (CGPDTM):**

CGPDTM is the primary government agency responsible for granting patents and registering trademarks and designs in India. - Website: <https://www.ipindia.gov.in/>

- **Indian Patent Office (IPO):**

Under the CGPDTM, the Indian Patent Office is responsible for the administration of the patent system in India. - Website: <https://www.ipindia.gov.in/>

- **Office of the Controller General of Copyrights:**

This office oversees copyright registration and administration in India. - Website: <http://copyright.gov.in/>

- **National Institute of Intellectual Property Management (NIIPM):**

NIIPM is an autonomous institute that provides training, research, and education in the field of intellectual property. - Website: <http://www.niipm.org.in/>

- **Intellectual Property Appellate Board (IPAB):**

IPAB hears appeals against the decisions of the Controller General of Patents, Designs & Trade Marks and the Registrar of Copyrights.

- **Indian Performing Right Society Limited (IPRS):**

IPRS is a copyright society that represents the rights of music composers, lyricists, and publishers in India. - Website: <https://www.iprs.org/>

- **Confederation of Indian Industry (CII):**

CII is an industry association that works on various business-related issues, including intellectual property rights advocacy. - Website: <https://www.cii.in/>

- **FICCI - Intellectual Property Division:**

The Intellectual Property Division of the Federation of Indian Chambers of Commerce and Industry (FICCI) is involved in promoting and protecting intellectual property rights. - Website: <https://www.ficciipcourse.in/>

Schemes and Programmes in India to encourage Intellectual Property

India has several schemes and programs aimed at promoting and protecting intellectual property (IP) rights. These initiatives are implemented by various government agencies and organizations. As of my last knowledge update in January 2022, here are some key schemes and programs related to intellectual property in India:

- **National Intellectual Property Rights (IPR) Policy:**

The National IPR Policy of India was launched in 2016 with the aim of fostering innovation and promoting the use of intellectual property for economic growth.

- **Patent Facilitation Centres (PFCs):**

PFCs have been established across the country to provide assistance and guidance to inventors and entrepreneurs in filing and processing patent applications.

- **Scheme for Facilitating Startups Intellectual Property Protection (SIPP):**

This scheme aims to promote awareness and adoption of intellectual property rights among startups by providing them with financial support for filing patents, trademarks, and designs.

- **R&D Grant for Patent Acquisition:**

The Department of Science and Technology (DST) provides financial assistance to academic institutions, research and development organizations, and MSMEs for acquiring patents.

- **Trademark Registration Camps:**

The Office of the Controller General of Patents, Designs, and Trademarks (CGPDTM) organizes camps and workshops to create awareness about the importance of trademark registration and to facilitate the registration process.

- **Geographical Indications (GI) Scheme:**

This scheme focuses on the protection of goods that have a specific geographical origin and possess qualities, reputation, or characteristics that are essentially attributable to that place of origin.

- **IPR Awareness and Promotion:**

Various campaigns and awareness programs are conducted to educate businesses, innovators, and the general public about the significance of intellectual property rights.

- **Technology and Innovation Support Centres (TISCs):**

TISCs are established to provide access to patent information and support in patent searches. They aim to promote innovation and the effective utilization of patent information.